

deposition notice that does not comply with Article 2 (commencing with Section 2025.210) waives any error or irregularity unless that party promptly serves a written objection specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled, on the party seeking to take the deposition and any other attorney or party on whom the deposition notice was served.”

Code of Civil Procedure section 2025.450, subdivision (a) does not appear to apply here because Plaintiff served written objections pursuant to Code of Civil Procedure section 2025.410, subdivision (a). Defendant has not argued or shown that the objection served was not valid. Moreover, on the record presented it looks like the deposition did not go forward – so Plaintiff did not fail to appear for examination.

Nonetheless, recognizing that the parties need some direction, the court orders Plaintiff to provide within 30 days of the notice of ruling, four alternative dates within the next 60 days for the Plaintiff’s deposition. The motion is otherwise denied. In the absence of an applicable statute, there is no provision for sanctions under the statutes cited in Defendant’s notice of motion and supporting memorandum.

Defendant is to provide notice of this ruling.